

25PSCV03897 25PSCV03897

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Tentative Ruling

DEFENDANT

NISSAN MOTOR ACCEPTANCE COMPANY LLC'S DEMURRER is SUSTAINED with 30 days leave to amend.

Background

This

is a fraud case. Plaintiffs MAYIES MEDADIAN and VAHE MEDADIAN allege the following against Defendants PUENTE HILLS NISSAN, a business entity, NISSAN MOTOR ACCEPTANCE COMPANY, LLC, a limited liability company, ("Defendant") and NISSAN NORTH AMERICA, INC.: On July 13, 2025, Plaintiff was coerced to trade in his 2022 Toyota Corolla for a purchase of a 2025 Nissan Altima; Plaintiffs entered into a contract under duress; and their signatures were forged for credit card applications.

On

October 28, 2025, Plaintiffs filed suit.

On

April 20, 2026, a first amended complaint (FAC) was filed asserting the following causes of action (COAs):

1. FRAUD

2. NEGLIGENCE

3. PROFESSIONAL NEGLIGENCE (LEGAL MALPRACTICE)[1]

4. NEGLIGENT MISREPRESENTATION

On April

22, 2026, Plaintiffs dismissed NISSAN NORTH AMERICA, INC.

On

May 26, 2026, the instant demurrer was filed.

On

June 3, 2026, an amendment to the complaint was filed naming Ghreiwati Of Ph LLC as Doe 1.

On

June 15, 2026, an opposition was filed.

On

June 22, 2026, a reply was filed.

Discussion

Defendant

brings forth the motion on a few grounds namely that the FAC, which is predicated upon fraud, lacks the requisite specificity. The court fully agrees.

The

FAC really contains one substantive allegation which is that “Defendant Nissan Motor Acceptance Company, LLC’s (“NMAC”) participated in or ratified fraudulent conduct involving falsified credit applications, forged signatures, and misrepresented financing terms, all of which resulted in substantial financial harm to Plaintiffs. Plaintiffs contend that the application for said VEHICLE was inaccurate [sic] and incomplete.” (FAC ¶12; see also FAC ¶18.)

But,

as argued by Defendant, the allegation(s) do not identify any conduct Defendant actually undertook, the time or circumstances under which any purported participation or ratification occurred, or any facts showing that Defendant had knowledge of the alleged fraud. In opposition, though lengthy, the gist of Plaintiffs’ argument is that the pleadings show an inference: “The FAC

alleges that [Defendant] received falsified documents, failed to verify their authenticity despite having the responsibility to do so, and proceeded with financing. These allegations support a reasonable inference of knowledge or willful blindness sufficient to survive demurrer.” (Opp. p. 9:1-4.)

While

inferences may be drawn from allegations, that is from well-pleaded allegations.

And as noted by Plaintiffs’ own opposition, the court need not accept legal conclusions, deductions, or conclusions of fact.

Ultimately,

the court is not asking for all of the evidentiary facts, but just specifics,

but specifics which are required under the COAs they plead. And perhaps Plaintiffs tacitly acknowledge more facts can be alleged by way of their

request for leave to amend in that Plaintiffs can plead facts about notices

or dispute letters received by Defendant regarding the transaction or chargebacks

or identity theft reports filed by Plaintiffs. (Opp. p. 13.) (Plus, an

amendment may be useful in light of the additionally named defendant.)

With

that, rather than address each COA, the court sustains the demurrer with leave to amend to provide more specifics.

Conclusion

Based

on the foregoing, the demurrer is sustained with 30 days leave to amend.

[1] It is unclear how this is a legal malpractice case.